

26STCV01428 26STCV01428

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV01428 Hearing Date: July 10, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:54 PM on July 7, 2026.

Rule of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No later than 4:00 p.m. on July 9, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court’s receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that he suffered injuries from a hit-and-run vehicular accident.

Defendants New Hope Drug and Alcohol Treatment Program, Inc. and Calvin Colin Justin Jamerson filed a Cross-Complaint for indemnity against the driver of the other vehicle, Defendant Diallo Anthony Davis.

Specially appearing Defendant Diallo Anthony Davis moves to quash service of summons and alternatively demurs to the Complaint.

TENTATIVE RULING

Specially appearing Defendant Diallo Anthony Davis’s motion to quash service of summons is DENIED.

Defendant’s demurrer to the first and second causes of action is OVERRULED.

Defendant is ordered to answer the Complaint within 10 days.

Motion To Quash Service of Summons

Plaintiff's Evidentiary Objections

Diallo Anthony Davis Declaration

No. 1: SUSTAINED. Hearsay.

No. 2: SUSTAINED. Hearsay.

No. 3: SUSTAINED. Hearsay.

No. 4: SUSTAINED. Hearsay.

No. 5: SUSTAINED. Lack of personal knowledge.

Discussion

The Court has received the moving and opposing briefs by the parties, but no reply yet.

Specially appearing Defendant Diallo Anthony Davis moves to quash service of summons. "When a defendant challenges [personal] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, *inter alia*, the facts requisite to an effective service. . . ." (Citation omitted.)" (*Floveyor International v. Superior Court* (1997) 59 Cal.App.4th 789, 793.)

Defendant argues as follows:

Defendant, Diallo Anthony Davis was not personally served with the summons and complaint. The documents were not personally delivered to the Defendant, nor were they left with a competent member of the household. Instead, an unidentified individual came to the residence and did not identify themselves as a process server, nor did they explain the nature of the papers. When Defendant's mother attempted to retrieve her glasses to speak with the individual, the papers were left unattended on the ground on the front porch, and the individual walked away. At no point were the documents directly handed to any adult, nor was any explanation of the purpose of the papers provided. Additionally, the Proof of Service on the court website lists the date of service as January 18, 2026, at 12:58 p.m., but the papers were left in this manner on the day prior. Because the papers were not personally delivered, they were not left with a competent adult, and no substituted service was properly performed in accordance with Code of Civil Procedure section 415.20; service was defective and ineffective and must be quashed. Therefore, the purported service on Defendant was not valid and should be quashed.

We first note that pre-1969 service of process statutes required strict and exact compliance. However, the provisions are now to be liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant, " 'and in the last analysis the question of service should be resolved by considering each situation from a practical standpoint. ...' " (Citation omitted.) The Supreme Court's admonition to construe the process statutes liberally extends to substituted service as well as to personal service. (Citation omitted.) "To be constitutionally sound the form of substituted service must be 'reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard ... [in order that] the traditional notions of fair play and substantial justice implicit in due process are satisfied.' [Citations.]" (Citation

omitted.)

The gate guard in this case must be considered a competent member of the household and the person apparently in charge. Appellants authorized the guard to control access to them and their residence. We therefore assume the relationship between appellants and the guard ensures delivery of process. . . .

. . . "The evident purpose of Code of Civil Procedure section 415.20 is to permit service to be completed upon a good faith attempt at physical service on a responsible person. ..." (Ibid., italics added.) Service must be made upon a person whose "relationship with the person to be served makes it more likely than not that they will deliver process to the named party." (Citation omitted.) Here, the gate guard's relationship with appellants made it more likely than not that he would deliver process to appellants. We note they do not claim they failed to receive notice of service.

(Bein v. Brechtel-Jochim Group, Inc. (1992) 6 Cal.App.4th 1387, 1391-94 [bold emphasis added].)

Here, Defendant does not claim he did not receive the summons and complaint, and was informed of such service the day after the papers were left where his mother retrieved them after she answered the door and went to get her glasses. The inference is that Plaintiff lives at the same house as his mother. Defendant does not deny that a copy was mailed to him. Under these circumstances, case law such as *Bien*, supra, holds that the service was made in a manner which made it more likely than not the process would be delivered to Defendant Davis, and thus was proper.

The motion to quash is DENIED.

Demurrer

Discussion

Defendant did not submit a meet and confer declaration as required by Code Civ. Proc. § 430.41. Nonetheless, the Court will address the merits of the demurrer.

It appears that Defendant is demurring to the first cause of action for motor vehicle negligence and the second cause of action for general negligence, which are the only two causes of action asserted against him.

Defendant argues that Plaintiff's complaint admits that Defendant Davis was not the proximate cause of the accident and the resulting alleged injuries. In the light most favorable to Plaintiff, Defendant Davis did not owe a legal duty to Plaintiff because the alleged harm was caused by Defendant Jamerson and the New Hope Drug Center van. Without duty or proximate cause, no actionable claim exists against Defendant Davis.

Defendant also argues that the complaint does not plead any specific damages. Plaintiff merely states that he "suffers injuries" as a result of the accident, but no facts are alleged as to the nature, extent, or amount of damages.

A complaint for damages for negligent injury to person or property must allege: (1) defendant's legal duty of care toward plaintiff; (2) defendant's breach of duty, i.e., the negligent act or omission; (3) injury to plaintiff as a result of the breach, i.e., proximate or legal cause; and (4) damage to plaintiff. (Citation omitted.) No strict requirements exist for the form of such allegations. The legal conclusion that a "duty" exists is not necessary. Here, the duty to exercise reasonable care can be inferred from the assertion of the fact that defendant owned and managed the property. (Citation omitted.) The negligence element may be generally pleaded; the breach of duty of care may be alleged by stating the act was negligently done. (Citations omitted.) Here, the complaint alleged defendant's negligent management and maintenance of his property. Proximate cause, as here, may also be simply set forth. (Citation omitted.)

(Pultz v. Holgerson (1986) 184 Cal.App.3d 1110, 1116-17.)

Allegations of negligence have long been exempted from the code pleading requirement to state the facts constituting the cause of action. (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 154 [157 P.2d 1].) Negligence may be generally pleaded and the enumeration of specific negligent acts in a complaint does not limit the plaintiff's proof at trial unless that is the pleader's clear intent. (Nielsen v. Milligan (1950) 100 Cal.App.2d 40, 44 [222 P.2d 916].)

(McCoy v. Gustafson (2009) 180 Cal.App.4th 56, 102.)

Here, the Complaint alleges:

12. On the same day, Defendant DIALLO ANTHONY DAVIS was traveling southbound in the alley west of Western Avenue, north of Imperial Hwy. Defendant JAMERSON, attempting to negotiate a left turn towards the alley west of Western Ave, and failed to yield the right of way to Defendant DAVIS, causing a head-on collision between the two vehicles.

...

27. Plaintiff is informed and believes and thereon alleges that his medical treatment was delayed due to Defendant DAVIS fleeing from the scene of the incident.

28. Plaintiff is informed and believes and thereon alleges that resources were diverted away from Plaintiff and his injuries in favor of law enforcement searching for and locating Defendant DAVIS due to him fleeing from the scene of the incident.

29. Plaintiff is informed and believes and thereon alleges, had Plaintiff received immediate medical assistance and attention from Defendant DAVIS and/or attention was not directed away from his in favor of locating Defendant DAVIS, his injuries would have been more promptly tended to and they would not be as debilitating as they currently are.

30. Plaintiff is informed and believes and thereon alleges, Defendant DAVIS's choice to flee the scene of the accident was a proximate and direct cause of Plaintiff's current complaints which could have been avoided had Defendant DAVIS rendered Plaintiff assistance in obtaining immediate medical attention.

(Complaint, ¶¶ 12, 27 - 30.)

These allegations are sufficient to allege that Defendant Davis owed a duty of care in the operation of vehicle, that he breached such duty in making a left turn without yielding the right of way, the collision caused Plaintiff injuries, and Plaintiff's injuries were exacerbated because he delayed immediate medical assistance while searching for Davis, who fled the scene. All elements of negligence are sufficiently pled against Defendant Davis. The details of Plaintiff's injuries may be ascertained through discovery.

The demurrer to the first and second causes of action is OVERRULED. Defendant Davis is ordered to answer the Complaint within 10 days.